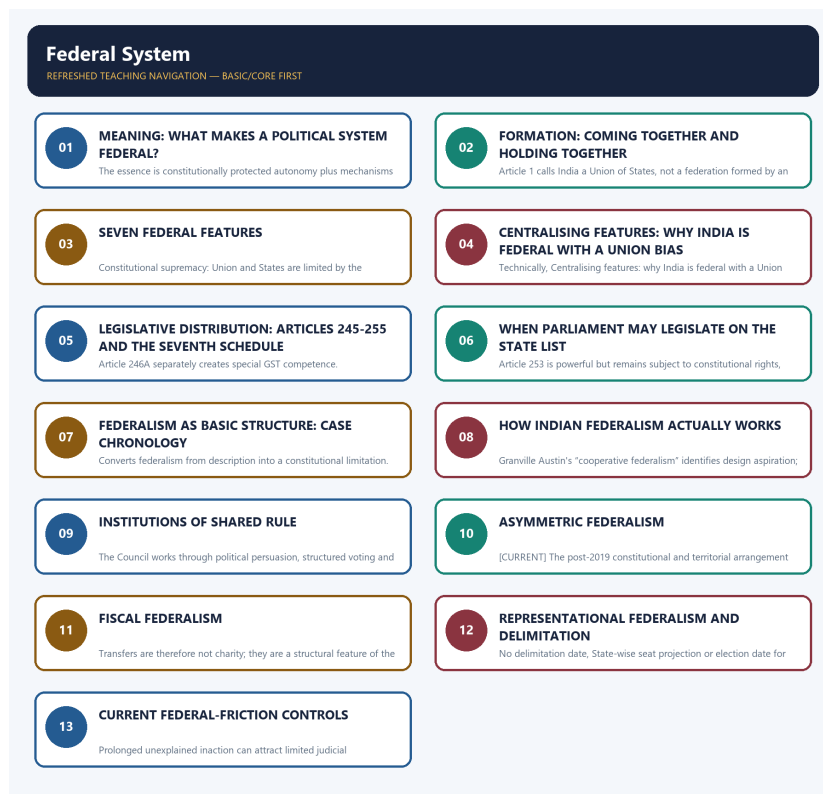


SOLVED PRACTICE WORKBOOK

Federal System - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / WORKBOOK INDEX

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Federal System - Complete Uncompressed Learning Session

BASIC MCQS / REMEDIATION

Diagnostic MCQs

Original hard MCQs

OM1. Federal essence

Which proposition best defines a federation?

A. A treaty league alone is federal. B. The Constitution protects authority of general and regional governments in assigned spheres. C. Regional governments receive revocable powers from the Union. D. Courts must always be dual.

Answer: B.

Constitutionally protected distribution, not mere administrative devolution, is the controlling test.

OM2. Holding together

India is best described as:

A. a holding-together federation with a strong Union. B. a legally unitary State with no State autonomy. C. a coming-together compact with a secession right. D. a confederation of sovereign States.

Answer: A.

India constitutionally distributes power to govern an existing diverse polity; States did not create the Union by compact.

OM3. Article 1

The phrase 'Union of States' most safely indicates that:

A. the Union is not the result of an agreement among sovereign States with a secession right. B. State governments are Union departments. C. the Seventh Schedule is optional. D. State boundaries can never change.

Answer: A.

The expression rejects compact/secession theory while coexisting with real constitutional federalism.

OM4. Federal feature

Which combination most directly protects federal allocation?

A. Governor appointment and All-India Services B. Single citizenship and emergency provisions C. Written supreme Constitution, division of powers and independent judiciary D. Parliamentary government and collective responsibility

Answer: C.

These features make the allocation authoritative and judicially enforceable.

OM5. Rajya Sabha

Which statement is correct?

A. Union Territories have no possible representation. B. Rajya Sabha is a federal chamber, but States do not receive equal representation. C. Rajya Sabha can amend the Seventh Schedule alone. D. Each State has two members.

Answer: B.

Fourth Schedule allocation broadly follows population; India does not copy US Senate equality.

OM6. Residuary power

Residuary legislative power in India belongs to:

A. the Inter-State Council. B. Parliament under Article 248 and Union Entry 97. C. State legislatures collectively. D. the Supreme Court.

Answer: B.

This is a centralising feature and differs from several classic federations.

OM7. List counts

Which is the standard current examination statement?

A. Union 98, State 59, Concurrent 52 B. Union 100, State 60, Concurrent 50 C. Union 97, State 66, Concurrent 47 D. Union 100, State 61, Concurrent 52

Answer: D.

Use 100/61/52; omitted and inserted numbering explains alternative literal counts.

OM8. Article 246

Which statement is correct?

A. Union List power operates notwithstanding Concurrent and State clauses. B. State List always overrides Union List. C. Article 246 contains no hierarchy. D. Concurrent power belongs only to Parliament.

Answer: A.

Article 246(1) uses a notwithstanding clause; State power is expressly subject to clauses (1) and (2).

OM9. Pith and substance

The doctrine primarily asks:

A. What is the true nature and character of the law? B. Is the law popular? C. Did Parliament consult every State? D. Was presidential assent politically wise?

Answer: A.

A law within competence survives incidental encroachment into another field.

OM10. Article 254

A State law repugnant to an existing parliamentary law on a Concurrent subject may operate in that State if:

A. the Inter-State Council recommends it. B. it is reserved for and receives Presidential assent. C. the Governor signs without reservation. D. Rajya Sabha alone approves it.

Answer: B.

Parliament can subsequently override the assented State law.

OM11. Article 249

Parliament may legislate on a State subject in national interest after:

A. every State consents. B. a simple Lok Sabha resolution. C. the Chief Justice certifies necessity. D. Rajya Sabha passes the prescribed two-thirds present-and-voting resolution.

Answer: D.

The States' chamber supplies the special federal trigger.

OM12. Article 252

Which statement is correct about a law under Article 252?

A. It requires an Article 352 emergency. B. Parliament enacts on State request and Parliament alone can amend or repeal it. C. It automatically applies to every State. D. A requesting State may repeal it unilaterally.

Answer: B.

Other States may later adopt the law.

OM13. Article 253

Article 253 permits Parliament to:

A. implement treaties even where legislation touches a State subject. B. change State boundaries without Article 3. C. suspend judicial review. D. abolish Rajya Sabha.

Answer: A.

Treaty implementation is an express route into the State field, subject to the Constitution.

OM14. Bommai

The strongest federal proposition from S.R. Bommai is:

A. Article 356 is non-justiciable. B. States have a right to secede. C. Governors decide majority finally in private. D. federalism is Basic Structure and Article 356 material is reviewable.

Answer: D.

Bommai constitutionalises federalism and favours floor determination of disputed majority.

OM15. Kuldip Nayar

Kuldip Nayar is safely used to show that:

A. a State residence requirement for Rajya Sabha candidature is not indispensable to Indian federalism. B. State representation is unconstitutional. C. all States require equal seats. D. Rajya Sabha is not a federal chamber.

Answer: A.

The judgment recognises India's distinctive, not textbook-identical, federal design.

OM16. Cooperative federalism

Which statement is most precise?

A. It requires unanimous agreement. B. It eliminates State autonomy. C. It denotes joint action while preserving constitutionally distinct governments. D. It excludes competition.

Answer: C.

Cooperation addresses interdependence; it does not merge the two levels.

OM17. Competitive federalism

A central benefit of competitive federalism is:

A. automatic equalisation of all capacities. B. policy innovation and diffusion among States. C. abolition of transfers. D. removal of constitutional limits.

Answer: B.

Competition can improve outcomes but may widen capacity gaps.

OM18. Morris-Jones

The label 'bargaining federalism' is associated with:

A. Morris-Jones. B. B.R. Ambedkar. C. K.C. Wheare. D. A.V. Dicey.

Answer: A.

It captures negotiated Union-State political operation.

OM19. GST Council

After Mohit Minerals, GST Council recommendations are:

A. binding constitutional commands. B. irrelevant to GST law. C. recommendatory, within a system requiring collaboration. D. binding only on States.

Answer: C.

The Court preserved simultaneous legislative authority and dialogic cooperation.

OM20. Inter-State Council

Which pairing is correct?

A. Article 280 - Inter-State Council B. Article 263 - Inter-State Council C. Article 312 - Finance Commission D. Article 279A - Zonal Councils

Answer: B.

Zonal Councils are statutory; the Finance Commission is Article 280.

OM21. Asymmetry

Asymmetric federalism means:

A. temporary President's Rule. B. unequal citizenship by default. C. no judicial review. D. constitutionally differentiated arrangements for some units or regions.

Answer: D.

India uses asymmetry for accommodation through Schedules, Article 371 provisions and differentiated UT designs.

OM22. Sixth Schedule

The Sixth Schedule principally applies to tribal areas in:

A. all north-eastern States. B. every Fifth Schedule State. C. only Assam. D. Assam, Meghalaya, Tripura and Mizoram.

Answer: D.

It creates autonomous council architecture in the four named States.

OM23. Vertical imbalance

Vertical fiscal imbalance refers to:

A. equal revenue and spending at both levels. B. only horizontal inequality among States. C. mismatch between revenue capacity and expenditure responsibilities across levels. D. a conflict within one State budget.

Answer: C.

States bear substantial spending duties while the Union controls broad tax bases.

OM24. 16th Finance Commission

Which current statement is used in this package?

A. The 2026-31 vertical share remains 41% of the divisible pool. B. States receive 50% of all Union revenue. C. The Finance Commission was abolished. D. Cesses are automatically divisible.

Answer: A.

Divisible pool is narrower than gross Union tax revenue because cesses and surcharges are excluded.

OM25. Governor assent

Under the controlling 20 November 2025 opinion:

A. every Bill is deemed assented after three months. B. courts choose assent or reservation. C. no fixed judicial timelines or deemed assent exist, but prolonged inaction can invite a direction to act. D. the Governor may keep a Bill forever without review.

Answer: C.

Judicial intervention is limited: require action, not dictate the constitutional option.

OM26. CBI consent

Which is correct?

A. Police is in the Union List. B. Withdrawal automatically voids every earlier proceeding. C. State consent can defeat a Supreme Court-ordered probe. D. Section 6 DSPE consent is ordinarily required, but constitutional courts can order CBI investigation.

Answer: D.

Consent protects federal police autonomy but is not absolute against constitutional judicial power.

OM27. Delimitation proposal

The 850-seat figure discussed in 2026 should be described as:

- A. a proposal in the defeated 131st Amendment Bill, not law. B. the current Article 81 ceiling. C. an Election Commission notification. D. a Supreme Court direction.

Answer: A.

Proposal text must never be converted into current constitutional fact.

OM28. Census control

Which statement is safest as of the control date?

- A. Enumeration dates are final publication dates. B. Delimitation must occur in 2027. C. Women's reservation is already operational. D. Notified census conduct dates do not establish publication, delimitation or election dates.

Answer: D.

The constitutional triggers depend on later steps; avoid invented timelines.

Remedial MCQs

RM1. Federal versus unitary

What makes State power federal rather than devolved?

- A. The size of the State. B. A central grant. C. Its constitutional protection. D. A Governor's speech.

Answer: C.

Constitutional origin and protection distinguish autonomy from revocable delegation.

RM2. Residuary power

Who holds residuary legislative power?

- A. President personally B. Rajya Sabha alone C. Parliament D. States

Answer: C.

Article 248 and Union Entry 97 place it with Parliament.

RM3. State List entry

Which route begins with resolutions by two or more State legislatures?

- A. Article 250 B. Article 252 C. Article 249 D. Article 253

Answer: B.

Article 252 is consensual State initiation followed by parliamentary law.

RM4. Repugnancy

Article 254 principally concerns conflict on:

- A. State List B. residuary subjects C. Union List D. Concurrent List

Answer: D.

It is not a general conflict clause for all Union-State disputes.

RM5. Bommai

Which is correct?

- A. Article 356 is immune from review. B. Governors decide majority conclusively. C. Federalism is Basic Structure. D. States can secede.

Answer: C.

Bommai supplies the core constitutional protection.

RM6. GST Council

Its recommendations are:

A. binding on States only B. constitutional amendments C. judicial orders D. recommendatory

Answer: D.

Mohit Minerals confirms recommendatory status.

RM7. Governor assent

Which current proposition is correct?

A. No review of inaction is possible B. No deemed assent, but prolonged inaction may be reviewed C. Deemed assent after one month D. Courts prescribe one universal deadline

Answer: B.

Use the November 2025 controlling opinion.

RM8. 2026 delimitation package

Its proposed numbers are:

A. approved by the Supreme Court B. binding after introduction C. defeated proposal details, not current law D. already in Article 81

Answer: C.

Always preserve the proposal/not-law label.

PYQS AND ANSWER PRACTICE

Routed PYQs with model solutions

PYQ 1 - UPSC GS-II 2020, Q3 - direct

Question: How far do you think cooperation, competition and confrontation have shaped the nature of federation in India? **10 marks | 150 words**

Model solution

Indian federalism is constitutionally divided but politically dynamic. Cooperation, competition and confrontation operate simultaneously rather than as successive phases.

Cooperation appears in the GST Council, Finance Commission transfers, disaster response and centrally supported programmes. These institutions recognise interdependence: the Union has scale and resources, while States possess implementation capacity and local knowledge.

Competition arises when States seek investment, improve service outcomes and innovate in welfare or regulation. It can diffuse good practice, but unequal capacity may widen regional gaps.

Confrontation occurs over Governor assent, CBI consent, tax devolution, cesses, scheme conditions and river waters. Such conflict need not destroy federalism if channelled through councils, Parliament, courts and elections.

S.R. Bommai makes federalism a Basic Structure feature, limiting coercive centralisation. Granville Austin's cooperative model states the aspiration, while Morris-Jones's bargaining federalism better describes operation.

Thus, the Indian federation is predominantly cooperative and bargaining, sharpened by competition and periodically tested by confrontation. Its success lies not in eliminating conflict but in keeping conflict constitutional and negotiable.

PYQ 2 - UPSC GS-II 2021, Q11 - cross-owned

Question: The jurisdiction of the Central Bureau of Investigation regarding lodging an FIR and conducting a probe within a particular State is being questioned by various States. However, the power of States to withhold consent to the CBI is not absolute. Explain with special reference to the federal character of India. **15 marks | 250 words**

Model solution

Police and public order are State subjects, while the CBI derives investigative authority from the Delhi Special Police Establishment Act, 1946. Section 6 therefore requires State consent before DSPE personnel exercise powers within a State.

States commonly grant **general consent**. Its withdrawal means the CBI ordinarily needs case-specific consent for fresh cases. This protects territorial police autonomy and prevents a central agency from becoming an unrestricted parallel State police.

The power is not absolute for three reasons. First, the Supreme Court under Article 32 and High Courts under Article 226 may order a CBI probe without State consent to protect fundamental rights and fair investigation. Second, withdrawal does not automatically invalidate every investigation validly begun earlier. Third, the legal effect can depend on the territorial acts, accused, offence and terms of existing consent.

In *State of West Bengal v. Union of India* (2024), the Supreme Court held West Bengal's Article 131 suit maintainable against the Union's preliminary objection. The merits remained for adjudication; the ruling should not be overstated as a final ban on all CBI action.

Federalism here requires balance. State consent protects police autonomy; constitutional-court power protects justice where State investigation fails; national offences may require coordination. A clear CBI statute, transparent consent protocols and judicially supervised exceptions would reduce political confrontation.

Thus, consent is a federal safeguard, not an immunity from constitutional judicial power.

PYQ 3 - UPSC GS-II 2022, Q13 - cross-owned

Question: While the national political parties in India favour centralisation, the regional parties are in favour of State autonomy. Comment. **15 marks | 250 words**

Model solution

The proposition captures an important tendency but is too absolute. Federal preferences often follow institutional position and electoral incentives more than permanent ideology.

National parties controlling the Union may favour centralisation because uniform policy, national security, macroeconomic management and common markets strengthen their governing programme. Constitutional tools include residuary power, centrally sponsored schemes, Union directions, All-India Services and Parliament's exceptional access to State subjects.

Regional parties derive legitimacy from State-specific identities and interests. They commonly demand larger tax devolution, fewer scheme conditions, protection from partisan Governor action, stronger Inter-State Council consultation and restraint in deploying central agencies. Coalition governments from 1989 onward often increased their bargaining power at the Union.

However, counterevidence qualifies the claim. National parties seek State autonomy when they govern a State but oppose the Union. Regional parties may centralise authority within their own States. National-party-led coalitions have accommodated regional demands, while regional parties participating in Union government may support national uniformity. GST also shows parties accepting pooled sovereignty for a common market.

The Constitution itself combines both impulses: State List autonomy and federal amendment safeguards coexist with a strong Union and emergency powers. *S.R. Bommai* prevents the political majority at the Centre from erasing the federal basic structure.

Therefore, party type influences federal preference, but control of office, coalition arithmetic and issue-specific interests explain behaviour more reliably than the national/regional label alone.

PYQ 4 - UPSC Prelims 2021, Q86 - direct

Question: Which one of the following in Indian polity is an essential feature that indicates that it is federal in character?

- A. The independence of judiciary is safeguarded B. The Union Legislature has elected representatives from constituent units C. The Union Cabinet can have elected representatives from regional parties D. Fundamental Rights are enforceable by Courts of Law

Answer: A. INFERRED ANSWER - NOT OFFICIALLY VERIFIED.

An independent judiciary is essential to interpret the Constitution and adjudicate competence disputes between two levels. The other options can exist in non-federal systems or do not create constitutional autonomy.

PYQ 5 - UPSC Prelims 2023, Q32 - direct

Question: Consider the following statements:

1. In India, prisons are managed by State Governments with their own rules and regulations for day-to-day administration.
2. The Prisons Act, 1894 kept the subject of prisons under the control of Provincial Governments.

Which one of the following is correct in respect of the above statements?

A. Both Statement-I and Statement-II are correct and Statement-II is the correct explanation for Statement-I
B. Both Statement-I and Statement-II are correct, but Statement-II is not the correct explanation for Statement-I
C. Statement-I is correct, but Statement-II is incorrect
D. Statement-I is incorrect, but Statement-II is correct

Answer: B. INFERRED ANSWER - NOT OFFICIALLY VERIFIED.

Prisons are a State List subject under Entry 4, explaining current State management. The colonial Act also placed administration with provincial governments, but it is not the constitutional reason for the present federal allocation.

Original Mains practice with model solutions

M1. 10 marks | 150 words

Question: Distinguish federalism from administrative decentralisation and explain why India remains federal despite a strong Union.

Demand decoding

- Define the legal test, then show both State autonomy and Union tilt.
- Use provisions plus one case; avoid label-only answers.

Model solution

Federalism constitutionally protects authority of two levels, whereas administrative decentralisation transfers powers that the superior government can ordinarily withdraw by law.

India satisfies the federal test through a written supreme Constitution, dual polity, Seventh Schedule distribution, selective amendment ratification, an independent judiciary and State representation in Rajya Sabha. States legislate directly on police, public health, agriculture and other List II subjects; their authority is not ordinary Union delegation.

The Union is nevertheless stronger. Parliament holds residuary power, can enter the State field under Articles 249, 250, 252, 253 and 356, reorganise States under Articles 2-4, and operates through integrated institutions, All-India Services and greater fiscal capacity.

These features qualify rather than destroy federalism because they arise from the Constitution, remain limited by rights and judicial review, and operate within political safeguards. *S.R. Bommai* identifies federalism as Basic Structure and subjects Article 356 to review.

Thus, India is not classically balanced federalism; it is a holding-together, Union-weighted federation. The decisive point is constitutionally protected State power, not numerical equality between Union and States.

M2. 10 marks | 150 words

Question: Explain how the doctrines of pith and substance, repugnancy and harmonious construction maintain the federal distribution of legislative power.

Model solution

The Seventh Schedule distributes subjects, but modern laws inevitably overlap. Constitutional doctrines preserve workable federalism without making every incidental encroachment fatal.

Pith and substance identifies a law's true nature. If its dominant character lies within the enacting legislature's field, incidental impact on another List does not invalidate it. **Harmonious construction** reads entries broadly yet seeks to reconcile them so that each retains meaningful operation. **Repugnancy**, principally under Article 254, resolves an irreconcilable conflict between parliamentary and State laws on a Concurrent subject: parliamentary law ordinarily prevails. A reserved State law receiving Presidential assent may operate within that State, though Parliament can later override it.

Together, the doctrines combine autonomy with national coherence. Pith and substance prevents rigid compartmentalisation; harmonious construction reduces avoidable collision; repugnancy supplies a final rule where coexistence is impossible.

The qualification is important: Article 254 is not a universal conflict rule, and judicial interpretation cannot create legislative competence absent from the Constitution.

M3. 15 marks | 250 words

Question: Indian federalism is cooperative in design, bargaining in operation and sometimes coercive in effect. Discuss.

Model solution

India's Constitution combines separate spheres with institutions requiring continuing interaction. The resulting federation cannot be captured by one adjective.

Cooperative in design: The GST Council, Finance Commission, Inter-State Council, Rajya Sabha's Articles 249 and 312 roles, centrally supported programmes and disaster coordination require joint action. Granville Austin's cooperative federalism captures this nation-building architecture.

Bargaining in operation: Union-State outcomes depend on party alignment, coalition arithmetic, Finance Commission submissions, scheme negotiations and fiscal capacity. Morris-Jones's label explains why formal Union superiority does not always determine practical outcomes.

Sometimes coercive in effect: Conditional grants, Union directions, Governor controversies, deployment of central agencies and large vertical fiscal imbalance can narrow State choice. Cesses and scheme contributions may increase perceived dependence. Yet not every national standard is coercive; common markets, rights and externalities can justify coordination.

Confrontation is also constitutionalised. States litigate under Article 131, withdraw CBI general consent, contest tax arrangements and mobilise politically. *S.R. Bommai* ensures that Union strength cannot erase the federal basic structure. *Mohit Minerals* similarly treats the GST Council as recommendatory, preserving legislative autonomy within collaboration.

Therefore, Indian federalism is a negotiated continuum. Cooperation is its institutional aspiration, bargaining its daily method and coercion its recurrent risk. Regular consultation, transparent transfers and neutral constitutional offices are needed to keep Union capacity from becoming domination.

M4. 15 marks | 250 words

Question: Critically examine the role of the Governor in India's federal system in the light of the current law on assent to State Bills.

Model solution

The Governor links constitutional headship, State government and the Union, making the office both necessary and conflict-prone.

The federal concern begins with appointment by the President and tenure during presidential pleasure. Discretion in government formation, reports under Article 356 and reservation of Bills can be perceived as Union leverage, especially under opposing parties. Delayed assent can disable a State legislature without openly rejecting its policy.

The controlling Constitution Bench advisory opinion of 20 November 2025 recalibrates Article 200. Courts cannot impose fixed timelines or create deemed assent, and they cannot substitute their own choice for the Governor's. However, prolonged unexplained inaction is not a constitutional pocket veto; limited judicial intervention may require the Governor to act without dictating assent, return, withholding or reservation.

The position protects decisional space but creates a higher duty of constitutional statesmanship. Reasons, prompt communication and fidelity to the elected government's legislative mandate are central to legitimacy. *S.R. Bommai* also requires gubernatorial action affecting State government to remain reviewable and ordinarily favours floor testing of majority.

Reform should emphasise politically detached appointments, consultation with the Chief Minister, secure conventions, publicly reasoned action and compliance with Sarkaria/Punchhi norms.

Thus, the Governor should be a constitutional sentinel and mediator, not a parallel executive or partisan gatekeeper. Federal balance depends as much on convention and restraint as on justiciable rules.

M5. 20 marks | 250-300 words

Question: Evaluate whether fiscal federalism in India provides States meaningful autonomy or primarily produces transfer dependence.

Model solution

Meaningful federal autonomy requires both legal competence and usable fiscal capacity. India gives States major responsibilities but combines them with substantial dependence on Union transfers.

Autonomy: States possess assigned taxes, borrow within constitutional rules, set expenditure priorities and receive a constitutionally structured share of the divisible pool. The Finance Commission is an independent periodic mechanism rather than a discretionary executive grant alone. GST gives States a voice in common-market taxation through the GST Council. The 16th Finance Commission retains 41% vertical devolution for 2026-31.

Dependence: The Union controls broad and buoyant tax bases, while States finance health, police, agriculture and welfare delivery. Cesses and surcharges lie outside the divisible pool, reducing the effective shareable base. Centrally sponsored schemes may impose design conditions and matching contributions. Unequal State tax capacity also means formal autonomy yields unequal outcomes.

Balancing devices: Horizontal devolution pursues equalisation through need, population, demographic performance, area, ecology and contribution-related criteria. Grants can address externalities and local-body capacity. *Mohit Minerals* protects legislative autonomy by holding GST Council recommendations non-binding.

However, dependence is not inherently anti-federal: redistribution and national standards can secure equal citizenship. It becomes coercive when conditions are opaque, consultation weak or States cannot exit without sacrificing essential services.

India therefore has constitutionally mediated interdependence, not fiscal independence. Greater transparency on cesses, predictable scheme shares, stronger State tax administration, a robust GST dispute mechanism and regular intergovernmental consultation would convert transfer dependence into accountable shared finance.

M6. 20 marks | 250-300 words

Question: Delimitation after a new Census presents a conflict between democratic equality and federal fairness. Analyse.

Model solution

Delimitation seeks broadly equal population representation, but long-term demographic divergence turns that democratic principle into a federal conflict.

Democratic-equality case: Constituency populations should not diverge indefinitely. Updated allocation can reduce unequal vote weight, improve constituency manageability and reflect migration and urbanisation. A larger House may also lower the citizen-representative ratio.

Federal-fairness concern: States that successfully reduced fertility fear losing relative influence to higher-growth States. Representation affects Union governments, fiscal bargaining and constitutional amendment politics. A purely population-driven redistribution may therefore appear to punish policy success and alter the original political balance.

Constitutional setting: Articles 81 and 82 govern representation and readjustment, while constitutional amendments created the seat freeze. Rajya Sabha already uses unequal State representation, so Lok Sabha change affects both popular and federal power. Article 334A also links operational women's reservation to a post-commencement census and subsequent delimitation.

Current control: The 2026 constitutional-delimitation package was defeated; its proposed 850-seat ceiling is not law. Census conduct dates do not supply a publication or delimitation date, and State-wise seat projections are speculative.

Possible principles: increase total seats to reduce zero-sum loss; protect a floor of relative State representation for a transition; reward demographic performance through transparent criteria; strengthen Rajya Sabha's federal role; and secure broad inter-State consultation before amendment.

The solution cannot be arithmetic alone. Democratic equality requires updated representation, but federal legitimacy requires that population stabilisation not translate into abrupt political dispossession. A negotiated constitutional bargain is therefore essential.

M7. 20 marks | 250-300 words

Question: Does the combination of regional parties, judicial review and intergovernmental councils adequately counterbalance India's centralising constitutional design?

Model solution

India's Constitution gives the Union substantial power, but political and institutional safeguards often decentralise its operation.

Regional parties articulate State-specific fiscal, linguistic and developmental interests. Coalition eras enabled them to bargain over ministries, schemes and national policy. Yet their influence depends on electoral arithmetic; they may also centralise power within their States.

Judicial review supplies a legal boundary. *S.R. Bommai* makes federalism Basic Structure and reviews Article 356; competence doctrines protect State laws from invalidation for incidental overlap; Article 131 provides an original forum for specified Union-State disputes. Courts, however, cannot replace continuous political negotiation and may defer in policy-heavy fields.

Councils and commissions institutionalise shared rule. The GST Council, Finance Commission, Inter-State Council and Zonal Councils permit information exchange, bargaining and coordination. *Mohit Minerals* preserves autonomy by treating GST Council recommendations as recommendatory. Weaknesses include irregular meetings, executive dominance, non-binding recommendations and unequal fiscal leverage.

These safeguards are meaningful but uneven. A single-party Union majority reduces coalition bargaining; councils can become consultative rituals; litigation is slow and adversarial. Governors, central agencies, conditional schemes and cesses can still generate coercive effects.

Therefore, the counterbalance is adequate to prevent easy destruction of federalism but not always adequate to ensure equal participation. Regular council meetings, reasoned decisions, stronger parliamentary scrutiny, neutral Governors, transparent transfers and better State capacity are required. India's federal equilibrium is maintained through repeated political contestation, not by constitutional text alone.